3705-B

Executive Order

For the purpose of carrying into effect the provisions of Section 20 of the Act of Congress approved June 10, 1922, relative to increased pay for duty involving flying and allowance for traveling expenses incident thereto, the following regulations, effective July 1, 1922, are hereby promulgated and made applicable to all officers, warrant officers, and enlisted men of all branches of the Army, Navy, Marine Corps and Coast Guard:

1. *Definitions:*—(a) The term "qualified aircraft pilot", as used in these regulations, shall be construed to include any commissioned or warrant officer or enlisted man of any branch of his respective service who has been, or may hereafter be rated an Airplane Pilot or Airship Pilot by competent authority in the Army, or who has been, or may hereafter be designated or appointed a Naval Aviator or Naval Aviation Pilot by competent authority in the Navy or Marine Corps, or who has been, or may hereafter be designated or appointed a Coast Guard Aviator or Coast Guard Aviation Pilot by competent authority in the Coast Guard.

(b) The term "qualified aircraft observer", as used in these regulations, shall be construed to include any commissioned or warrant officer or enlisted man of any branch of his respective service who has been, or may hereafter be rated an Airplane Observer or Balloon Observer by competent authority in the Army, or who has been, or may hereafter be appointed a Naval Aviation Observer by competent authority in the Navy or Marine Corps, or who has been, or may hereafter be appointed a Coast Guard Aviation Observer by competent authority in the Coast Guard.

(c) The term "student aviator", as used in these regulations, shall be construed to include any officer or warrant officer in any branch of his respective service who is appointed a Student Naval Aviator by competent authority in the Navy or Marine Corps, or who is appointed a Student Coast Guard Aviator by competent authority in the Coast Guard, and who is duly assigned to a course of instruction in piloting aircraft.

(d) The term "student aviation pilot", as used in these regulations, shall be construed to include any enlisted man in any branch of his respective service who is appointed a Student Naval Aviation Pilot by competent authority in the Navy or Marine Corps, or who is appointed a Student Coast Guard Aviation Pilot by competent authority in the Coast Guard, and who is duly assigned to a course of instruction in aircraft pilot duties.

(e) The term "student aviation observer", as used in these regulations, shall be construed to include any officer, warrant officer, or enlisted man, in any branch of his respective service, who is appointed a Student Naval Aviation Observer by competent authority in the Navy or Marine Corps, or who is appointed a Student Coast Guard Aviation Observer by competent authority in the Coast Guard, and who is duly assigned to a course of instruction in aircraft observer duties.

2. Each officer or warrant officer who is a qualified aircraft pilot and who is not unfit for duties as such, and who is commissioned in, or duly assigned or attached to the Air Service of the Army, or who is duly assigned to duty in any part of the aeronautic organization of the Navy, Marine Corps, or Coast Guard, including those assigned to special, administrative, or school duties, shall be detailed to duty involving flying; such detail shall be made by the Chief of Air Service for the Army, the Chief of Bureau of Navigation for the Navy, the Major General Commandant for the Marine Corps, or by the Captain Commandant for the Coast Guard, and such detail shall remain in force for the entire period of such commission, assignment, or attachment, except as hereinafter provided in paragraphs 9 and 10.

3. Each officer or warrant officer who is a qualified aircraft observer, or an aircraft pilot who is unfit for piloting duties but is fit and desired for other flying duty, and who is commissioned in, or duly assigned, or attached to the Air Service of the Army, or who is duly assigned to duty in any part of the aeronautic organization of the Navy, Marine Corps, or Coast Guard, shall be detailed to duty involving flying; such detail shall be made by the Chief of Air Service for the Army, the Chief of Bureau of Navigation for the Navy, the Major General Commandant for the Marine Corps, or by the Captain Commandant for the Coast Guard, and such detail shall remain in force for the entire period of such commission, assignment, or attachment except as hereinafter provided in paragraphs 9 and 10.

4. Each officer of the Medical Corps of the Army, or the Navy who is duly assigned to duty with any aeronautic headquarters or unit of the Army, Navy, Marine Corps, or Coast Guard, or assigned to duty at a station where there is an aeronautic unit, and who has qualified as a flight surgeon, shall be considered as on duty involving flying when detailed to such duty involving flying by the Chief of Air Service for the Army, or by the Chief of Bureau of Navigation for the Navy and Marine Corps, and such detail shall remain in force for the entire period of such assignment, except as hereinafter provided in paragraphs 9 and 10.

5. Each officer or warrant officer other than student aviators of the Navy, Marine Corps, and Coast Guard, and those specified in paragraphs 2, 3, and 4, who is duly assigned to duty that includes flights in aircraft, shall be detailed to duty involving flying; such detail shall be made by the Chief of Air Service for the Air Service of the Army, the Secretary of War for other branches of the Army, the Chief of Bureau of Navigation for the Navy, the Major General Commandant for the Marine Corps, or by the Captain Commandant for the Coast Guard, and such detail shall remain in force for the entire period of such assignment, except as hereinafter provided in paragraphs 9 and 10.

6. Each officer, warrant officer or enlisted man of the Army who is duly assigned to a course of instruction for qualification as aircraft pilot or aircraft observer, and each officer, warrant officer or enlisted man of the Navy, Marine Corps or Coast Guard who is duly appointed a student aviator, a student aviation pilot, or a student aviation observer, shall be detailed to duty involving flying; such detail shall be made by the Chief of Air Service for the Army, the Chief of Bureau of Navigation for the Navy, the Major General Commandant for the Marine Corps, or by the Captain Commandant for the Coast Guard, and such detail shall remain in force for the entire period of his course of instruction except as hereinafter provided in paragraphs 9 and 10.

7. Each enlisted man who is serving in the Air Service of the Army, or in any part of the aeronautic organization of the Navy, Marine Corps, or Coast Guard, and who is a qualified aircraft pilot, shall be detailed to duty involving flying by his commanding officer; such detail shall remain in force for the entire period of such service, except as hereinafter provided in paragraphs 9 and 10 or until revoked by his commanding officer; such detail and its revocation shall be reported to the Chief of Air Service for the Army, the Chief of Bureau of Navigation for the Navy, the Major General Commandant for the Marine Corps, or to the Captain Commandant for the Coast Guard.

8. Each enlisted man who is serving in the Air Service of the Army, or in any part of the aeronautic organization of the Navy, Marine Corps, or Coast Guard, and who is not a qualified aircraft pilot or observer, but is assigned to duty that includes flights in aircraft, shall be detailed to duty involving flying by his commanding officer; such detail shall remain in force for the entire period of such assignment except as hereinafter provided in paragraphs 9 and 10, or until revoked by his commanding officer; such detail and its revocation shall be reported to the Chief of Air Service for the Air Service of the Army, the

Secretary of War for other branches of the Army, the Chief of Bureau of Navigation for the Navy, the Major General Commandant for the Marine Corps, or to the Captain Commandant for the Coast Guard.

9. Each officer, warrant officer or enlisted man of the Army, Navy, Marine Corps, or Coast Guard, who is detailed to duty involving flying, shall be required to make at least ten flights or be in the air a total of four hours during each calendar month; provided that an officer, warrant officer, or enlisted man so detailed, who is unable to meet these requirements during any calendar month for any reason other than sickness or injury, shall be regarded as having met them if he performs a minimum of twenty flights or is in the air a minimum of eight hours prior to the end of the following calendar month; provided further, that an officer, warrant officer or enlisted man so detailed, who is unable to meet this alternative requirement for any reason other than sickness or injury, shall be regarded as having met this requirement if he performs a minimum of thirty flights or is in the air a minimum of twelve hours prior to the end of the calendar month thereto succeeding. Failure to comply with the foregoing requirements shall have the effect of suspending the detail to duty involving flying, but only for the period during which the foregoing requirements as to flights are not complied with; provided that, in the case of any officer, warrant officer, or enlisted man, who, by reason of sickness or injury incurred in the line of duty, is unable to comply with the foregoing requirements, his detail to duty involving flying shall be considered as temporarily suspended from the day following that on which the disability occurred; if the flight requirements are subsequently met within the three months' period herein prescribed, the temporary suspension shall be considered nullified, otherwise it shall remain in effect until he resumes flights in conformity with the foregoing requirements. Each officer, warrant officer or enlisted man, who is detailed to duty involving flying, and who is a qualified aircraft pilot, and who is fit for duty as such, shall make the flights herein required as pilot. Each officer, warrant officer, or enlisted man who is detailed to duty involving flying and who is a qualified aircraft observer, but is not a qualified aircraft pilot, shall make the flights herein required as observer.

10. A commanding officer shall suspend from flying any officer, warrant officer, or enlisted man under his command, who, in his opinion, is unfit for flying for any reason other than sickness or injury. Such action shall be reported, with the reasons therefor, for confirmation to the authority who issued to such officer, warrant officer, or enlisted man his detail to duty involving flying. The confirmation of such action shall have the effect of suspending the detail to duty involving flying of the officer, warrant officer, or enlisted man concerned from the date such suspension from flying was made. When any officer, warrant officer or enlisted man, so suspended from flying, becomes in the opinion of his commanding officer, again fit for flying, the commanding officer shall revoke his suspension from flying and such action shall be reported, with reasons therefor, for confirmation to the authority who confirmed the suspension from flying; the confirmation of such revocation shall have the effect of terminating the suspension of the officer, warrant officer, or enlisted man concerned from his detail to duty involving flying, from the date the suspension from flying was revoked by the commanding officer.

11. When traveling by air on duty without troops, under competent orders, actual and necessary expenses, not to exceed $8.00 per day, shall be paid to officers, contract surgeons, warrant officers, and enlisted men of the Army, Navy, Marine Corps and Coast Guard.

WARREN G HARDING

THE WHITE HOUSE,
July 1, 1922.

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